

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

JAY BRADSHAW

Plaintiff,

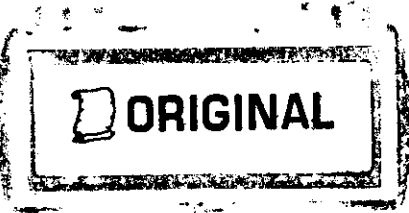
-against-

THE CITY OF NEW YORK;
SERGEANT WEINGARTEN and
JOSEPH LINDOR, Individually and
as a Member of the New York City
Police Department,

Defendants.

KUNTZ, J.
LEVY, M.J.

COMPLAINT



Index No. _____

CV 15-02166

FILED
IN CLERK'S OFFICE
US DISTRICT COURT E.D.N.Y.
★ APR 13 2015 ★
4:20 PM - RV
BROOKLYN OFFICE

Plaintiff-Pro Se

Jay Bradshaw
#895-14-00123
Rikers Island (AMKC/C-95)
18-18 Hazen Street
East Elmhurst, NY 11370

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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

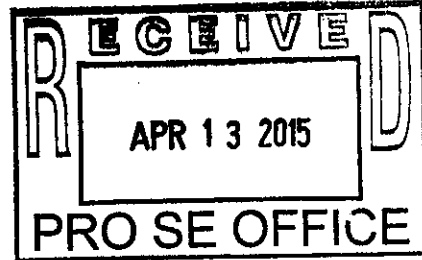
JAY BRADSHAW

Plaintiff,

-against-

THE CITY OF NEW YORK;
SERGEANT WEINGARTEN and
JOSEPH LINDOR, Individually and
as a Member of the New York City
Police Department,

Defendants.



COMPLAINT

Index No. _____

Jury Trial Demanded

Plaintiff JAY BRADSHAW ("Plaintiff"), complaining of the Defendants, respectfully alleges, upon information and belief, as follow:

NATURE OF ACTION

1. This is a civil action, pursuant to 42 U.S.C. § 1983 and 1988, and state law, seeking monetary damages for Plaintiff, JAY BRADSHAW, due to his unlawful imprisonment, arrest and search of his person caused by Defendants SERGEANT WEINGARTEN, JOSEPH LINDOR and the New York City Police Department ["NYPD"].

2. Plaintiff's conviction by guilty plea in 2008 was overturned on August 10, 2010, by the Appellate Division, Second Department, who ruled, amongst other things, that Plaintiff's

arrest, as a matter of law, was not supported by probable cause and therefore unlawful. Such ruling was affirmed by the Court of Appeal on December 13, 2011. The case was subsequently dismissed in Plaintiff's favor, on April 30, 2012.

3. This lawsuit seek to hold the defendant CITY OF NEW YORK liable for the above misconduct under the federal civil rights statute, 42 U.S.C. § 1983, and *Monell v. Dept. Of Social Services*, 436 U.S. 658 (1978). The unlawful action of the police sergeant and detective documented in this lawsuit resulted from a affirmative or de facto municipal policies, practices and customs to violate the constitutional rights of Plaintiff, or from deliberate indifference by policy-making officials, acting on behalf of the City of New York, to such violations. As Plaintiff will demonstrate, the NYPD, as a matter of policy, illegally detain and confine, arrest, and conduct line-ups and searches without regards to constitutional considerations, thereby encouraging future constitutional violations to occur, including those directed against Plaintiff.

4. This lawsuit seek to hold the Defendant SERGEANT WEINGARTEN, from the 101st precinct in Queens, for the detention and confinement of Plaintiff, for approximately four (4) hours.

5. The principal individual defendant, acting pursuant to unlawful municipal policy, the New York City Brooklyn Special Victim Squad (BSVS) detective, JOSEPH LINDOR is liable for the instigation of Plaintiff's illegal detention and confinement at

the 101st precinct, for the arrest and continued confinement of Plaintiff at the BSVS, and for the search of his person.

6. Plaintiff, Jay Bradshaw, seek \$500 thousand in actual damages, and \$500 thousand in punitive damages, for the unlawful conduct by defendants' that deprived him of his liberty, and right to be secured in his person.

JURISDICTION, VENUE, AND CONDITIONS PRECEDENT

7. This action arises under 42 U.S.C. § 1983, and under the common law of the State of New York.

8. Jurisdiction is conferred on this Court by 28 U.S.C. §§ 1331 & 1343, and by principles of pendent jurisdiction.

9. Venue is proper in this Court pursuant to 28 U.S.C. 1391.

10. In July of 2012, Plaintiff served upon Defendant City of New York timely notice of the present claim pursuant to New York General Municipal Law § 50-a.

11. Plaintiff has duly complied with all of the conditions precedent to the commencement of this action.

the parties

12. Plaintiff, JAY BRADSHAW, is a citizen and resident of the State of New York and of the United States, and is presently confined at Rikers Island (Anna M. Kross Center/C-95),

located at 18-19 Hazen Street, East Elmhurst, New York 11370.

13. Defendant CITY OF NEW YORK, of which the County of Kings is a subdivision, is a municipal corporation of the State of New York and is a resident of the Eastern District of New York.

14. Defendant, SERGEANT WEINGARTEN, at all relevant times, was a sergeant employed by the New York City Police Department ["NYPD"], acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the State of New York and the City of New York, and acted within the scope of his employment. He is sued in his individual and his official capacities.

15. Defendant, JOSEPH LINDOR, at all relevant times, was a detective employed by the NYPD, acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the State of New York and the City of New York, and acted within the scope of his employment. He is sued in his individual and his official capacities.

16. The NYPD is an agency of the CITY OF NEW YORK, Sergeant and Detectives employed by the NYPD are agents and employees of the City of New York, which is legally responsible for torts they commit within the scope of the employment and/or under color of law.

ALLEGATION COMMON TO ALL CAUSES OF ACTION

A. The Crime and The Initial Investigation

17. On May 11, 2004, Juliet Dwunfour was raped by a stranger in the confines of the 75th precinct in Brooklyn.

18. Ms. Dwunfour described her assailant as a black man approximately 6' tall, wearing dark clothing, a hooded sweatshirt, and a do-rag.

19. On May 13, 2004, Detective Edward Narvaez and Potenza met Emanuel Aviles, who reported that, at about 2:50 a.m. on May 11, he was working as a security guard at Linden Plaza, a large apartment complex, when he saw a man near the security booth whom he recognized as a basketball player from Beach Channel High School.

20. According to Narvaez, the incident happened in the vicinity of the security booth.

21. After looking at high school year books, Mr. Aviles identified Mr. Bradshaw. Mr. Aviles did not know the man's name.

22. Defendant LINDOR, who was investigating the rape, then issued a NYPD "inquiry card" so he would be notified if Plaintiff was stopped, arrested, or identified.

B. Plaintiff's Arrest and Indictment

23. Five days later, on May 18, 2004, at the request of the police, Plaintiff appeared voluntarily at the 101st precinct in Queens with his Mother, and without an attorney.

24. Defendant WEINGARTEN instructed Plaintiff's Mother to leave the precinct immediately.

25. At the direction of Defendant LINDOR, Defendant WEINGARTEN, although he lacked probable cause to do so, illegally detained and confined Plaintiff at the 101st precinct against his will, and deprived him of his liberty.

26. Defendant WEINGARTEN put Plaintiff in a holding cell handcuffed for approximately four (4) hours but refused to inform him of any charges against him.

27. When he arrived at the 101st precinct, although he lacked probable cause to do so, Defendant LINDOR handcuffed and placed Plaintiff in a police car then transported him to the BSVS.

28. Upon arrival at the BSVS, although he lacked probable cause to do so, Defendant LINDOR illegally arrested and imprisoned Plaintiff against his will, and deprived him of his liberty.

29. Defendant LINDOR also subjected Plaintiff to a mugshot photograph, finger printing, interrogation, a line-up, which he was purportedly identified by Ms. Dwunfour, and a search of his person, specifically, buccal swabs were taken for D.N.A. testing and comparison.

30. On May 19, 2004, while at the BSVS, at approximately 1:00 a.m., Plaintiff was interrogated by Queens detectives regarding an unrelated Queens matter.

31. Later, Plaintiff was transported to the 112th precinct in Queens where he was exhibited in a line-up for three witnesses. None of whom recognized him as the perpetrator.

32. After, Plaintiff was transported back to Brooklyn at night and arraigned for the offenses alleged against Ms. Dwunfour, approximately thirty-five (35) hours following his initial detention and confinement at the 101st precinct.

33. In June 2004, Plaintiff was indicted by a Brooklyn grand jury.

C. The Wade Hearing

34. At the Wade hearing, Defendant LINDOR conceded that the case file included other descriptions of the assailant as 5'7" and 5'9" that Plaintiff did not match.

35. Defense counsel argued, inter alia, that the police lacked probable cause to arrest because the initial description was of a man 5'7" to 5'9". Plaintiff by contrast, is 6'2".

36. Defendant LINDOR agreed that Plaintiff did not appear to be 5'9". Nor, on the day of his arrest was Plaintiff wearing the clothing described by Ms. Dwunfour.

37. Detective Narvaez did not say Mr. Aviles observed Plaintiff with a woman or that he was even aware that a crime had been committed.

D. Plaintiff's Conviction and Appeal

38. Plaintiff appealed from the judgment of the Supreme Court, Kings County, rendered May 5, 2008, convicting him, upon

his plea of guilty.

39. On August 10, 2010, the Appellate Division, Second Department ruled, amongst other things, that the People had failed to establish probable cause, requiring suppression of the line-up and vacature of the guilty plea.

40. On December 13, 2011, the Court of Appeal affirmed the Appellate Division's decision reversing the judgment of conviction.

41. On April 30, 2012, the prosecution was terminated in Plaintiff's favor.

E. Plaintiff's Damages and Injuries

42. Plaintiff's injuries and damages includes, but are not limited to:

- (a) The indignity of being arrested and imprisoned;
- (b) The shame and humiliation he suffered as a result of the arrest and imprisonment;
- (c) Loss of liberty for approximately thirty-five (35) hours prior to his arraignment;
- (d) Past and future mental and emotional injuries and suffering; and
- (e) Injury to reputation.

FIRST CAUSE OF ACTION

(False Imprisonment Under State Law; All Defendants)

43. Plaintiff repeats and realleges each and every allegation contained in ¶¶ 1 through 42 of this Complaint.

44. The Individual Defendants, willfully, wrongfully, and maliciously and without any warrant or legal process, imprisoned and confined Plaintiff against his will, depriving him of his liberty.

45. Specifically, defendants, individually, without probable cause procured or instigated Plaintiff's illegal detention and confinement at the 101st precinct, for approximately four (4) hours.

46. Plaintiff suffered severe emotional distress as a result of, and that was proximately caused by, the Defendants' aforementioned actions.

47. By virtue of the foregoing, Plaintiff suffered the actual damages identified in ¶ 42.

48. Defendant City of New York is liable under the principle of respondeat superior.

SECOND CAUSE OF ACTION

(False Arrest and Imprisonment Under State Law; All Defendants)

49. Plaintiff repeats and realleges each and every allegation contained in ¶¶ 1 through 48 of this Complaint.

50. The Individual Defendants, willfully, wrongfully, and maliciously and without any warrant or legal process, arrested and imprisoned Plaintiff against his will, depriving him of his

liberty.

51. Specifically, defendants, individually, without probable cause procured or instigated Plaintiff's illegal detention at the 101st precinct and, Plaintiff's arrest and continued confinement at the BSVS in total of approximately thirty-five (35) hours.

52. Plaintiff suffered severe emotional distress as a result of, and that was proximately caused by, the Defendants aforementioned actions.

53. By virtue of the foregoing, Plaintiff suffered the actual damages identified in ¶ 42.

54. Defendant City of New York is liable under the principle of respondeat superior.

THIRD CAUSE OF ACTION

(Intentional Infliction of Emotional Distress Under State Law; All Defendants)

55. Plaintiff repeats and realleges each and every allegation contained in ¶¶ 1 through 54 of this Complaint.

56. Defendants engaged in a continuous pattern of extreme and outrageous conduct directed at Plaintiff for approximately thirty-five (35) hours or until he was arraigned in Brooklyn Criminal Court on May 19, 2004.

57. Defendants engage in conduct with an intention to cause, or in reckless disregard of the substantial probability it would cause, Plaintiff severe emotional distress.

58. Specifically, defendants, individually, without probable cause procured or instigated Plaintiff's illegal detention and confinement at the 101st precinct and, Plaintiff's arrest and continued confinement at the 85VS for approximately thirty-five (35) hours or until he was arraigned in Brooklyn Criminal Court on May 19, 2004.

59. Plaintiff suffered severe emotional distress as a result of, and that was proximately caused by, the Defendants' aforementioned actions.

60. By virtue of the foregoing, Plaintiff suffered the actual damages identified in ¶ 42.

61. Defendant City of New York is liable under principle respondeat superior.

FOURTH CAUSE OF ACTION

(42 U.S.C. § 1983; Deprivation of liberty Under the Fourth and Fourteenth Amendments; All Defendants)

62. Plaintiff repeats and realleges each and every allegation contained in ¶¶ 1 through 61 of this Complaint.

63. Defendants WEINGARTEN and LINDOR relied on incomplete information as a basis to arrest and imprison Plaintiff without probable cause.

64. By virtue of the foregoing, defendnats, with actual malice, procurred or instigated Plaintiff's arrest and imprisonment for which they knew, or should have known, there was

no probable cause, and for which in fact there was no probable cause, and thereby caused Plaintiff to be deprived of his liberty.

65. The aforesaid conduct, which Defendant committed, operated to deprive Plaintiff of his rights under the Constitution and Laws of the United States:

(a) Not to be deprived of his liberty absent probable cause to believe he has committed a crime, in violation of his right, under the Fourth and Fourteenth Amendments to the United States Constitution.

66. The foregoing violations of Plaintiff's federal constitutional right by the Defendants directly, substantially, proximately, and foreseeably caused Plaintiff's loss of liberty, and his other injuries and damages.

67. The foregoing violations of Plaintiff's rights amounted to Constitutional torts and were affected by actions under color of State law, and within the scope of the Defendant's employment and authority.

68. Defendants committed the foregoing violations of Plaintiff's rights knowingly, intentionally, willfully, recklessly, and/or with deliberate indifference to Plaintiff's constitutional rights or to the effect of such misconduct upon Plaintiff's constitutional rights.

69. By reason of the foregoing, the Defendants are liable to Plaintiff, pursuant to 42 U.S.C. § 1983, for compensatory and for punitive damages.

FIFTH CAUSE OF ACTION

(Monell/42 U.S.C. § 1983; Claim Against Defendant
City of New York For The Action Of The NYPD)

70. Plaintiff repeats and realleges each and every allegation contained in ¶¶ 1 through 69 of this Complaint.

71. The foregoing violations of Plaintiff's federal constitutional rights and injuries were further directly, foreseeably, proximately, and substantially caused by conduct chargeable to Defendant City, amounting to deliberate indifference to the constitutional rights of Plaintiff, who was investigated, imprisoned, arrested including the search of his person, without probable cause.

72. Policymaking official at the NYPD, with deliberate indifference to the constitutional rights of individuals suspected or accused of criminal activity, and to the rights of all criminal suspects and defendants to due process, implemented plainly inadequate policies, procedures, regulations, practices, customs, training, supervision, and discipline concerning:

- (a) Adequate investigations;
- (b) The determination of probable cause to make an arrest.

73. The aforesaid deliberate or de facto policies, procedures, regulations, practices and/or custom (including the failure to properly instruct, train, supervise and/or discipline employees with regard thereto) were implemented or tolerated by policymaking officials for the Defendant City of New York, including but not limited to, the New York City Police

Commissioner, who knew (or should have known):

a) to a moral certainty that such policies, procedures, regulations, practices and/or customs concern issues that regularly arises in the investigative stages of cases;

b) that such issues either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situation as well as the incentives that police employees have to make the wrong choice; and

c) that the wrong choice by such employees concerning such issues will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and caused them constitutional injury.

74. The aforementioned policy making officials had the knowledge and the notice alleged in the preceding paragraph based upon, amongst other circumstances:

(a) civil lawsuits, some of which resulted in substantial civil settlements, credibly alleging that police had detained, confined, or conducted searches or arrest without probable cause.

(b) numerous decisions of the UnitedStates Supreme Court, the UnitedStates Court of Appeals for the Second Circuit, the New York Court of Appeals, and the New York Appellate Division, discussing the difficult issues that regularly arises under the probable cause requirement of the Fourth Amendment;

(c) the inherent obviousness of the need to train, supervise and discipline police officers in such obligations to counteract the pressure on officers and the powerful incentives they have to close cases and to obtain arrest.

75. Under the principles of municipal liability for federal civil rights violations, the City's Police Commissioner (or his authorized delegates), has final responsibility for training, instructing, supervising, and disciplining police personnel with respect to investigation, imprisonment and arrest, including constitutional requirements governing interrogation, line-up, and searches.

76. The Police Commissioner, personally and/or through his authorized delegates, at all relevant times had final authority, and constituted a City policymaker for whom the City is liable, with respect to compliance by NYPD employees with the above-mentioned constitutional requirements.

77. During all times material to this Complaint, the Police Commissioner owed a duty to the public at large and to Plaintiff, which he knowingly and intentionally breached, or to which he was deliberately indifferent, to implement policies, policies, procedures, customs, practices, training and discipline sufficiently to prevent or deter conduct by his subordinates violating the aforementioned constitutional rights of criminal suspects or defendants and of other members of the public.

78. The aforesaid policies, procedures, regulations, practices and/or customs of Defendant City and the NYPD were

collectively and individually a substantial factor in bringing about the aforesaid violations by the Individual Police Defendants of Plaintiff's rights under the Constitution and laws of the United States.

79. By virtue of the foregoing, Defendant City of New York is liable for having substantially caused the foregoing violations of Plaintiff's constitutional right and his constitutional injuries.

SIXTH CAUSE OF ACTION

(Negligent Hiring, Training and Supervision Under
State Law; Defendant City of New York)

80. Plaintiff repeats and realleges each and every allegation contained in ¶¶ 1 through 79 of this Complaint.

81. By virtue of the foregoing, defendant City of New York is liable to plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to servants and/or employees employed by the NYPD with regard to their aforementioned duties.

DAMAGES DEMAND

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

- a. For compensatory damages of not less than \$500

thousand;

b. For punitive damages against the individual Defendants of \$500 thousand;

c. For reasonable attorneys' fees, together with costs and disbursements, pursuant to 42 U.S.C. § 1988 and to the inherent powers of this Court;

d. For pre-judgment interest as allowed by law; and

e. For such other and further relief as this Court may deem just and proper.

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 22 day of January, 2015

Plaintiff-Pro Se



Jay Bradshaw

#895-14-00123

I declare under penalty of perjury that on this 22 day of January, 2015, I am delivering this Complaint to prison authorities to be mailed to the Pro Se Office of the United States District Court for the Eastern District of New York.

Plaintiff-Pro Se



Jay Bradshaw

#895-14-00123

To: Pro Se Office

United State District Court

Eastern District District Of NY

United States Courthouse

225 Cadman Plaza, East

Brooklyn, NY 11201

Rikers Island (AMKC7C-95)

18-18 Hazen Street

East Elmhurst, NY 11370

JS 44 (Rev. 1/2013)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

JAY BRADSHAW, # 895-14-00123 - C-95
Anna M. Kross Center - 18-18 Hazen Street
East Elmhurst, NY 11370

(b) County of Residence of First Listed Plaintiff

(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

(Pro Se Plaintiff: SEE ABOVE)

DEFENDANTS

THE CITY OF NEW YORK; SERGEANT WEINGARTEN and
JOSEPH LINDOR, Individually and as a Member of the New York City
Police Department

County of Residence of First Listed Defendant

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

ORIGINAL

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☒ 3 Federal Question (U.S. Government Not a Party)
☐ 2 U.S. Government Defendant
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|----------------------------|----------------------------|---|----------------------------|----------------------------|
| Citizen of This State | ☐ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

- | | | | | | |
|---|---|---|--|---|--|
| ☐ 110 Insurance
☐ 120 Marine
☐ 130 Miller Act
☐ 140 Recovery of Overpayment of Medicare Act
☐ 151 Medicare Act
☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
☐ 153 Recovery of Overpayment of Veteran's Benefits
☐ 160 Stockholders' Suits
☐ 190 Other Contract
☐ 195 Contract Product Liability
☐ 196 Franchise | PERSONAL INJURY
☐ 310 Airplane
☐ 315 Airplane Product Liability
☐ 320 Assault/Libel Slander
☐ 330 Federal Employment Liability
☐ 340 Marine
☐ 345 Marine Product Liability
☐ 350 Motor Vehicle
☐ 355 Motor Vehicle Product Liability
☐ 360 Other Personal Injury
☐ 362 Personal Injury - Medical Malpractice | PERSONAL INJURY
☐ 365 Personal Injury - Product Liability
☐ 367 Health Care
☐ 368 Asbestos Personal Injury Product Liability
PERSONAL PROPERTY
☐ 370 Other Fraud
☐ 371 Truth in Lending
☐ 380 Other Personal Property Damage
☐ 385 Property Damage Product Liability | ☐ 625 Drug Related Seizure of Property 21 USC 881
☐ 690 Other | ☐ 422 Appeal 28 USC 158
☐ 423 Withdrawal 28 USC 157
☐ 820 Copyrights
☐ 830 Patent
☐ 840 Trademark | ☐ 375 False Claims Act
☐ 400 State Reapportionment
☐ 410 Antitrust
☐ 430 Banks and Banking
☐ 450 Commerce
☐ 460 Deportation
☐ 470 Racketeer Influenced and Corrupt Organizations
☐ 480 Consumer Credit
☐ 490 Cable/Sat TV
☐ 850 Securities/Commodities/Exchange
☐ 890 Other Statutory Actions
☐ 891 Agricultural Acts
☐ 893 Environmental Matters
☐ 895 Freedom of Information Act
☐ 896 Arbitration
☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
☐ 950 Constitutionality of State Statutes |
| ☐ 210 Land Condemnation
☐ 220 Foreclosure
☐ 230 Rent Lease & Ejectment
☐ 240 Torts to Land
☐ 245 Tort Product Liability
☐ 290 All Other Real Property | ☐ 440 Other Civil Rights
☐ 441 Voting
☐ 442 Employment
☐ 443 Housing/Accommodations
☐ 445 Amer. w/Disabilities - Employment
☐ 446 Amer. w/Disabilities - Other
☐ 448 Education | Habeas Corpus:
☐ 463 Alien Detainee
☐ 510 Motions to Vacate Sentence
☐ 530 General
☐ 535 Death Penalty
Other:
☐ 540 Mandamus & Other
☒ 550 Civil Rights
☐ 555 Prison Condition
☐ 560 Civil Detainee - Conditions of Confinement | ☐ 710 Fair Labor Standards Act
☐ 720 Labor/Management Relations
☐ 740 Railway Labor Act
☐ 751 Family and Medical Leave Act
☐ 790 Other Labor Litigation
☐ 791 Employee Retirement Income Security Act | ☐ 861 HIA (1395ff)
☐ 862 Black Lung (923)
☐ 863 DIWC/DIWW (405(g))
☐ 864 SSID Title XVI
☐ 865 RSI (405(g)) | |

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from Another District (specify)
☐ 6 Multidistrict Litigation

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
42 U.S.C. Section 1983

Brief description of cause:

Prisoner 1983 Civil Rights Action

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.C.P.

DEMAND \$

CHECK YES only if demanded in complaint
JURY DEMAND: ☐ Yes ☒ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

KUNTZ/LEVY

DOCKET NUMBER 13-CV-4308 (WFK)(RML)

DATE
04/13/2015

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

2166

JUDGE

MAG. JUDGE

CERTIFICATION OF ARBITRATION ELIGIBILITY

Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, _____, counsel for _____, do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☐ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☐ the matter is otherwise ineligible for the following reason

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

RELATED CASE STATEMENT (Section VIII on the Front of this Form)

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? No
- 2.) If you answered "no" above:
- a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? No
- b) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? Yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

☐

Yes

☐

No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?

☐

Yes

(If yes, please explain)

☐

No

I certify the accuracy of all information provided above.

Signature: _____